

STATE OF NEW YORK

8823--C

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. ZINERMAN, OTIS -- read once and referred to the Committee on Corporations, Authorities and Commissions -- recommitted to the Committee on Corporations, Authorities and Commissions in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law and the public authorities law, in relation to requiring certain utility corporations and the Long Island power authority to establish a meter usage monitoring program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 39-a to read as follows:

§ 39-a. Meter usage monitoring program. 1. The commission shall require any utility corporation utilizing advanced metering infrastructure to establish a usage monitoring program for the purposes of notifying residential customers when such utility usage exceeds a usage threshold, as determined by such residential customer, in a given billing period. The usage monitoring program shall notify residential customers electronically or by mail when half of their determined energy usage threshold is met, and when their usage threshold exceeds their determined threshold. Such notification shall include an estimate of their monthly bill.

2. The usage monitoring program shall be an elective program for residential customers and designed to provide such residential customers with daily updates on their utility usage. Such usage information shall be accessible to the customer online within such customer's online account.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD13114-04-6

1 3. The usage monitoring program shall at a minimum include the follow-
2 ing:

3 (a) the ability to select to enroll or disenroll from the usage moni-
4 toring program;

5 (b) the ability to set a monthly usage threshold that is measured in
6 kilowatt hours (kWh), therms, hundred cubic feet (CCF), in gallons or in
7 the measurement usage that is currently provided by such utility corpo-
8 ration on the customer's monthly billing statement; and

9 (c) the ability for a participating customer or enrolling customer to
10 select the manner through which they will receive notification of their
11 usage status pursuant to subdivision one of this section.

12 4. The commission shall, with respect to the protection of customer
13 data, at a minimum ensure:

14 (a) any customer data collected pursuant to such usage monitoring
15 program shall only include personal identifying information necessary to
16 effectively administer this program;

17 (b) no customer data collected pursuant to the usage monitoring
18 program may be sold or shared except as set forth in paragraph (c) of
19 this subdivision;

20 (c) participating customer data may be shared with law enforcement
21 only pursuant to a valid judicial warrant or judicial subpoena; and

22 (d) customer data shall be safely stored and securely encrpyted, be
23 destroyed within thirty days after intended use unless retention is
24 otherwise required to comply with federal, state, or local laws, rules,
25 or regulations, and be subject to any other additional cybersecurity
26 protections the commission deems necessary to protect customers and
27 customer data.

28 § 2. Title 1-A of article 5 of the public authorities law, as added by
29 chapter 517 of the laws of 1986, is amended by adding a new section
30 1020-nn to read as follows:

31 § 1020-nn. Meter usage monitoring program. The authority shall develop
32 and implement a usage monitoring program for the purposes of notifying
33 residential customers when such energy usage exceeds a usage threshold
34 as determined by such residential customer, in a given billing period.
35 Such program shall be implemented pursuant to section thirty-nine-a of
36 the public service law.

37 § 3. This act shall take effect one year after it shall have become a
38 law. Effective immediately, the addition, amendment and/or repeal of any
39 rule or regulation necessary for the implementation of this act on its
40 effective date are authorized to be made and completed on or before
41 such effective date.